

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael King	Team: Team # 6	CCRB Case #: 200600225	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 12/05/2005 12:00 AM, Tuesday, 12/06/2005 12:00 AM, Friday, 01/06/2006 11:30 AM	Location of Incident: § 87(2)(b) in the Bronx	18 Mo. SOL 7/6/2007	Precinct: 42		
Date/Time CV Reported Fri, 01/06/2006 1:13 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/06/2006 1:13 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. DT3 Craig Crisfield	91852	918523	047 DET
3. SGT Jon Neessen	05087	902931	047 DET
4. DT3 Joseph Eppolito	00295	896359	047 DET
5. SGT Charles Neusch	02650	895783	PBBX
6. An officer			047 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Kenneth Dohan	06264	899151	047 DET
2. DT2 Patrick Cregin	03278	889822	047 DET
3. LT Patrick Rafferty		887540	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Craig Crisfield	Abuse: On December 5, 2005, Det. Craig Crisfield threatened to damage § 87(2)(b)'s property.	A . Unsubstantiated
B . DT3 Craig Crisfield	Abuse: On January 6, 2006, Det. Craig Crisfield entered and searched § 87(2)(b) Bronx, NY.	B . Substantiated
C . DT3 Craig Crisfield	Discourtesy: On January 6, 2006, Det. Craig Crisfield spoke obscenely and rudely to § 87(2)(b)	C . Unsubstantiated
D . DT3 Craig Crisfield	Force: On January 6, 2006, Det. Craig Crisfield pointed his gun at § 87(2)(b) and § 87(2)(b)	D . Exonerated
E . DT3 Craig Crisfield	Force: On January 6, 2006, Det. Craig Crisfield used physical force against § 87(2)(b)	E . Exonerated
F . SGT Jon Neessen	Force: On January 6, 2006, Sgt. Jon Neessen used physical force against § 87(2)(b)	F . Exonerated
G . Officers	Abuse: On January 6, 2006, officers damaged § 87(2)(b)'s property.	G . Exonerated

Officer(s)	Allegation	Investigator Recommendation
H . An officer	Force: On January 6, 2006, an officer used a chokehold against § 87(2)(b)	H . Unfounded
I . An officer	Abuse: On January 6, 2006, an officer refused to provide his name to Phillip § 87(2)(b)	I . Unfounded
J . SGT Jon Neessen	Discourtesy: On January 6, 2006, Sgt. Jon Neessen spoke rudely to § 87(2)(b)	J . Unsubstantiated
K . DT3 Joseph Eppolito	Abuse: On January 6, 2006, Det. Joseph Eppolito damaged § 87(2)(b)'s property.	K . Exonerated
L . DT3 Joseph Eppolito	Force: On January 6, 2006, Det. Joseph Eppolito used physical force against § 87(2)(b)	L . Exonerated
M . SGT Charles Neusch	Force: On January 6, 2006, Sgt. Charles Neusch used physical force against § 87(2)(b)	M . Exonerated
N . An officer	Force: On January 6, 2006, an officer used physical force against § 87(2)(b)	N . Exonerated
O . SGT Charles Neusch	Discourtesy: On January 6, 2006, Sgt. Charles Neusch spoke rudely to § 87(2)(b)	O . Unsubstantiated
P . SGT Jon Neessen	Abuse: On January 6, 2006, Sgt. Jon Neessen threatened to arrest § 87(2)(b)	P . Exonerated
Q . SGT Jon Neessen	Force: On January 6, 2006, Sgt. Jon Neessen struck § 87(2)(b) with a radio.	Q . Unsubstantiated

Synopsis

On December 5, 2005, Det. Craig Crisfield, Sgt. Jon Neessen, and Det. Kenneth Dohan went to § 87(2)(b) in the Bronx in search of § 87(2)(b). § 87(2)(b) spoke with the officers, informing them that § 87(2)(b) was not home. § 87(2)(b) alleged that Det. Crisfield threatened to break down her door if the officers returned to the location in the future (allegation A).

At 11:30 AM on January 6, 2006, Det. Crisfield, Sgt. Neessen, and Det. Dohan returned to the location with Det. Joseph Eppolito and Det. Patrick Cregin. Det. Crisfield had an I-card for § 87(2)(b) who was a suspect for a previous § 87(2)(a). Det. Crisfield entered the location (allegation B) after seeing § 87(2)(b) inside the house without § 87(2)(b)'s consent or permission. § 87(2)(b) alleged that Det. Crisfield spoke discourteously to her when she asked to see a warrant (allegation C). Det. Crisfield entered the basement of the apartment in pursuit of § 87(2) with his gun drawn. He pointed his firearm at § 87(2)(b) and § 87(2)(b) (allegation D) before finding § 87(2) in the basement; he also pointed his firearm at § 87(2)(b) (allegation D). Det. Crisfield and Sgt. Neessen used physical force to arrest § 87(2)(b) (allegations E and F). During the struggle, a hole was punctured into the bathroom wall (allegation G). The struggle started in the bathroom and spilled out to a nearby bedroom. § 87(2) alleged that an officer used a chokehold against him (allegation H). § 87(2)(b)'s daughter § 87(2)(b) and § 87(2)(b) came to the basement to see what was happening. § 87(2)(b) alleged that he asked one of the officers for his name but was told, "Joe Black," a fictitious name (allegation I). § 87(2) also alleged that Sgt. Neessen spoke discourteously to him during the struggle (allegation J). Det. Dohan requested back-up officers. Det. Eppolito, who was outside, attempted to enter the front door but found it locked. Det. Eppolito broke the front door window (allegation K) and entered the house to assist in the arrest. Det. Eppolito also used physical force against § 87(2) (allegation L), who was finally handcuffed.

The officers escorted § 87(2) out of the house but § 87(2)(b) and § 87(2) interfered with the officers. § 87(2)(b) was arrested by a responding officer, as directed by Sgt. Neessen. Sgt. Charles Neusch used physical force along with an unidentified officer to effect the arrest of § 87(2)(b) (allegations M and N). During the arrest, § 87(2)(b) bit Sgt. Neusch. § 87(2)(b) alleged that Sgt. Neusch responded by calling her "an animal" (allegation O). An unidentified officer threatened to arrest § 87(2)(b) if he interfered with the arrest of § 87(2)(b) (allegation P). § 87(2)(b) was also arrested without incident. § 87(2)(b) alleged that while she was being escorted to a patrol car, Sgt. Neessen walked behind her and hit her on the head with a radio (allegation Q). § 87(2)(b) and § 87(2)(b) were transported to the 47th Precinct station house and eventually transported to § 87(2)(b) for medical treatment.

§ 87(2)(g)
It is recommended that allegations D-G, K-N, and P be closed, **exonerated**. It is recommended that allegations A, C, J, O, and Q be closed, **unsubstantiated**. It is recommended that allegations H-I be closed, **unfounded**. Finally, it is recommended that allegation B be closed, **substantiated**.

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) year old § 87(2)(b) was interviewed at the CCRB on February 16, 2005 (enclosure 14a-14e). § 87(2)(b) alleged that on December 5, 2005, officers from the 47th Precinct Detective Squad came to her house (a private dwelling with one floor and a basement) and asked to enter the dwelling to arrest her son, § 87(2)(b). § 87(2)(b) refused to allow them to enter and Det. Crisfield (identified by the investigation from the statements obtained and descriptions provided) threatened to break down the door the next time they came.

On January 6, 2006 at approximately 11:30 AM, the same officers came to the front door of her home at § 87(2)(b) to arrest her son, § 87(2)(b) on a domestic violence complaint. Her adult children, § 87(2) and § 87(2)(b) both live in the basement. When § 87(2)(b) opened the door in response to the ringing bell, Det. Crisfield informed her that they had a warrant for § 87(2)(b) § 87(2)(b).

§ 87(2)(b) let the officers enter and asked to see the warrant. Det. Crisfield told her to wait until he “got this straight.” § 87(2)(b) again requested to see the warrant, and Det. Crisfield responded, “I’m not going to show you shit” while walking down to the basement. The other officers followed him into the basement.

§ 87(2)(b) was downstairs and § 87(2)(b) who did not descend immediately, heard bumping noises. Upon arriving in the basement, § 87(2)(b) saw the three officers in a very small bathroom attempting to handcuff § 87(2)(b). § 87(2)(b) refused to place his hands behind his back. § 87(2)(b) initially alleged that she was pushed by one of the officers but later recanted the allegation upon further questioning. The officers and § 87(2)(b) were struggling and pushing in this extremely tight space, and somehow in the process a hole was made in the bathroom wall. § 87(2)(b) observed this hole after the incident was over. The officers were only trying to grab § 87(2)(b)’s arms.

§ 87(2)(b)’s granddaughter, also named § 87(2)(b) was home sick from school that day. She walked down to the basement and stood in the hall. § 87(2)(b) told the officers not to hurt her grandmother though the officers were not touching § 87(2)(b) at this point.

Eventually the officers and § 87(2)(b) moved into a bedroom across the hall from the bathroom. § 87(2)(b) did not see how the group moved into the room. § 87(2)(b) looked pale and had blood on his upper lip under his nose. § 87(2)(b) was also saying that he was having difficulty breathing. § 87(2)(b) again instructed him to put his hand behind his back and then walked upstairs. She did not see § 87(2)(b) handcuffed or see him again on the scene at all.

Approximately five minutes later, § 87(2)(b) looked out of the front door and saw § 87(2)(b) handcuffed facedown near the gate in the front yard. PO4 (a short, fat white male in plainclothes) had his knee on the side of § 87(2)(b)’s neck. About ten officers were outside. Additional officers from the 42nd precinct responded, but these officers just observed and did not become physically involved. By the time these uniformed officers arrived, everyone was already in handcuffs.

§ 87(2)(b) went outside and stood on the steps outside of the front door. § 87(2)(b) was still on the ground. § 87(2)(b) § 87(2)(b)’s daughter, was standing outside to the side of the front yard (closer to the house) near a tree and told the officers two or three times not to hurt her daughter (§ 87(2)(b)). § 87(2)(b) dressed in a nightgown, never attempted to approach § 87(2)(b). § 87(2)(b) heard an officer order someone to arrest § 87(2)(b) as well, though § 87(2)(b) did not see what happened.

§ 87(2)(b) and § 87(2)(b) were taken to the hospital. § 87(2)(b) though § 87(2)(b) did not observe what caused the injury, § 87(2)(b) had marks from the handcuffs on her wrists.

Results of Investigation

§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on February 16, 2006 (enclosure 15a-15e). According to § 87(2)(b) she was sleeping in her bedroom basement when she heard commotion outside of her door and got up to investigate. When she exited her bedroom, Det. Crisfield (identified by the investigation based on statements obtained and descriptions provided) pointed a gun in her face and asked where § 87(2)(b) was. § 87(2)(b) did not know. § 87(2)(b)’s sister-in-law, § 87(2)(b) was sleeping on the couch with a coat over her head. Det. Crisfield, thinking this was § 87(2)(b) pulled the coat off while pointing his flashlight and gun in § 87(2)(b)’s face.

§ 87(2)(b)’s statement regarding § 87(2)(b)’s arrest was consistent with that of her mother, though she added that her mother was pushed by an unidentified officer. After § 87(2)(b) was handcuffed, one of the officers requested additional officers via radio. § 87(2)(b) did not understand why more officers were needed when § 87(2)(b) was already in handcuffs, so she walked up the stairs and locked the front door to prevent the officers from entering. She then proceeded to the side door and locked that as well. She did not see § 87(2)(b) again until they arrived at the stationhouse.

On her way back from the side door, § 87(2)(b) observed PO6 carrying § 87(2)(b) out the front door by holding her in front of him by the waist. § 87(2)(b) was moving her body, attempting to get loose. § 87(2)(b) followed them outside to see what was happening, but the officers had § 87(2)(b) on the other side of a large tree. § 87(2)(b) climbed over the railing on the stairs and stood on her toes on the grass in attempt to see what was occurring. One officer (no description) had his foot on § 87(2)(b)’s neck; this officer may have been kneeling. PO6 had his right knee on § 87(2)(b)’s back. § 87(2)(b) yelled at the officers, instructing them not to hurt her daughter because she was only § 87(2)(b) and pregnant. § 87(2)(b) could not see if § 87(2)(b) was handcuffed.

Sgt. Neessen (identified by the statements obtained and the descriptions provided), who was standing to § 87(2)(b)'s left about three feet away on the grass, said, "Lock her ass up; she's going too." § 87(2)(b) did not attempt to approach § 87(2)(b) and the officers. Sgt. Neessen grabbed § 87(2)(b)'s right arm, pulled it behind her back, and handcuffed her. § 87(2)(b) tried to explain that because she had § 87(2)(b) her arms could not go all the way behind her back. However, Sgt. Neessen forced her arms behind her back; the handcuffs left marks on § 87(2)(b)'s wrists. § 87(2)(b) did not struggle with or resist this officer. This was the only physical interaction she had with an officer.

Sgt. Neessen immediately led § 87(2)(b) to a vehicle. § 87(2)(b) in pain from the handcuffs, also told Sgt. Neessen that she uses a walker and was unable to lift her legs into the police vehicle. The officers lifted her leg and placed it in the car; her leg scrapped against the back of the front seat, causing an abrasion to her left knee.

EMS responded to the stationhouse and transported § 87(2)(b) and § 87(2)(b) to the hospital. At the hospital, § 87(2)(b) § 87(2)(b) also had § 87(2)(b) from the officer placing the handcuffs on her.

§ 87(2)(b) § 87(2)(b) a § 87(2)(b)-old African-American male with black hair, was interviewed at the CCRB on May 22, 2006 (enclosure 18a-18f). § 87(2)(b) was in the bathroom when the incident began, preparing to take a shower. He heard his mother ask to see a search warrant but a male voice responded that he did "not have to show (her) shit." He next heard § 87(2)(b) telling someone to get the gun out of her face. He then heard § 87(2)(b) say, "that's not him" and "get the gun out of her face." § 87(2)(b) presumed that the officers first interacted with § 87(2)(b) and then went to where his sister-in-law, § 87(2)(b) was sleeping and interacted with her. § 87(2)(b) opened the bathroom door and two officers entered. Det. Crisfield (identified based on the statements obtained and descriptions provided) pointed his gun at § 87(2)(b)'s face. § 87(2)(b) moved the officer's arm holding the gun away from him and stepped to the right. § 87(2)(b) asked who the officers were and what they were doing. Det. Crisfield told § 87(2)(b) he was under investigation and the officers grabbed him by the arms. The officers pulled him out of the bathroom into the bedroom. § 87(2)(b) was moving his arms as the officers pulled him. A large white male officer – Sgt. Neessen (identified based on the statements obtained) grabbed § 87(2)(b) wrapped his arm around his neck, and choked him, cutting off his air supply. The officer also told § 87(2)(b) to "Shut the fuck up." § 87(2)(b)'s relatives yelled at the officers to stop. After he was choked, § 87(2)(b) fell to the ground on his left side and was handcuffed. The officers picked § 87(2)(b) up and escorted him out of the basement and out of the house. While exiting the house, § 87(2)(b) noticed that the window on the front door was shattered. Once outside, Sgt. Neessen pushed § 87(2)(b) to his knees and onto the lawn. Sgt. Neessen then told a uniformed officer to stay with § 87(2)(b) could hear § 87(2)(b) and § 87(2)(b) telling the officers not to hurt him. Sgt. Neessen grabbed § 87(2)(b)'s arm and pulled her down the stairs. § 87(2)(b) verbally objected and another officer then arrested her.

§ 87(2)(b) was then escorted to an unmarked vehicle. While walking, he observed § 87(2)(b) laying facedown on the ground with Sgt. Neessen's knee on her back. § 87(2)(b) was transported to the station house. § 87(2)(b) and § 87(2)(b) were then transported to § 87(2)(b). § 87(2)(b) claimed that he sustained an injury to his leg.

§ 87(2)(b) § 87(2)(b)'s granddaughter, § 87(2)(b)'s daughter)

§ 87(2)(b) a § 87(2)(b)-old African-American female, was interviewed at the CCRB on February 16, 2006 (enclosure 16a-16e). At the start of the incident, § 87(2)(b) was asleep in her first floor bedroom. After hearing noise from the basement, § 87(2)(b) went downstairs to see what was happening. Upon arriving in the basement, she saw an officer standing with her grandmother. § 87(2)(b) heard the officer, a 5'8" white male with a medium build, say, "I don't need to show ya'll shit," in reference to showing a warrant.

§ 87(2)(b) went back upstairs and called 911. After speaking with the operator, § 87(2)(b) went back to the basement. On her way, she noticed that the front door was broken. § 87(2)(g) § 87(2)(b) claimed that two officers were punching § 87(2)(b) while he told them to handcuff him. After punching him about five times, the officers handcuffed § 87(2)(b). The officers then escorted § 87(2)(b) out of the house. § 87(2)(b) followed and then stood on the staircase landing by the front door. § 87(2)(b) heard an officer yell, "She hit me, arrest her." Sgt. Neessen (identified by the investigation based on statements and descriptions – a tall, blonde white male officer with "craters" on his face) grabbed § 87(2)(b) by the arms, lifted her off the ground, and carried her outside to the front gate. Sgt. Neessen dropped § 87(2)(b)

face first on the ground and put his left knee on her back. Two other officers were standing by and § 87(2)(b) grabbed the right jacket pocket of one of the officers to pull him close, ripping the jacket in the process. Sgt. Charles Neusch (identified by the investigation based on statements) stumbled forward and § 87(2)(b) bit him on his right knee. Upon further questioning, § 87(2)(b) admitted that she bit him higher up on his leg than his knee. Sgt. Neusch then said, "This little animal bit me." The officers then handcuffed her and escorted her to a vehicle. As they walked to the car, Sgt. Neessen, who was walking behind § 87(2)(b) hit her three times on the back right side of her head with a radio. § 87(2)(b) denied that she struggled while walking to the car. § 87(2)(b) was then placed inside a car.

§ 87(2)(b) was then removed from the first car and was to be placed in a second car. When she got out of the first car, Sgt. Neusch stated, "Look at you, you little animal, so dirty early in the morning." A uniformed Hispanic female with a long braided ponytail helped her into the second car. A few minutes later, § 87(2)(b)'s mother § 87(2)(b) was placed in the same car with her and was also handcuffed. § 87(2)(b) did not see her arrest.

§ 87(2)(b) and § 87(2)(b) were first taken to the station house, but then transported to § 87(2)(b) for treatment. § 87(2)(b) went to the hospital because she was pregnant and because of her head injury. § 87(2)(b) § 87(2)(b) did not indicate to medical personnel that an officer hit her on the head or exactly when she was hit. She only indicated that an unknown male hit her on the head while she was walking in the street.

§ 87(2)(b) a § 87(2)(b)-old African-American male with black hair, was interviewed at the CCRB on February 16, 2006 (enclosure 17a-17f). § 87(2)(b) woke to hear bumping noises coming from the basement. § 87(2)(b) went downstairs and saw four plainclothes officers arresting his son. Contrary to all of the other statements, § 87(2)(b) claimed that one of the officers was pointing a gun at § 87(2)(b) while the officers attempted to handcuff § 87(2)(b). § 87(2)(b) asked the officer – a fat white male officer with pock marks on his face (Sgt. Neessen) – for his name, but he did not answer. § 87(2)(b) asked another officer – described as a tall white male wearing a white shirt – and he responded, "Joe Black." The officers then moved into the bedroom with § 87(2)(b) and arrested him.

§ 87(2)(b) heard additional officers banging on the front door, causing the oval-shaped glass to shatter. Two additional officers then came downstairs. § 87(2)(b) went upstairs, as did § 87(2)(b). After several minutes, the officers escorted § 87(2)(b) out in handcuffs. § 87(2)(b) did not observe any injuries to § 87(2)(b). § 87(2)(b) left the basement and went outside to stand on the stoop with § 87(2)(b). At that time, § 87(2)(b) was on the ground near the front gate. Sgt. Neessen had his knee on her back and was holding her arms behind her. § 87(2)(b) started to approach, but Sgt. Neessen said to him, "I'll fucking arrest you." § 87(2)(b) then walked back to the stoop. § 87(2)(b) came out of the house. She stood near a tree and told the officers not to hurt her daughter. § 87(2)(b) did not approach the officers. Sgt. Neessen then said, "Take her ass too." A skinny and tall white male with red hair then handcuffed § 87(2)(b) without incident. Several uniformed officers responded, but they did not interact with the § 87(2)(b). An unidentified neighbor from across the street yelled out of his window at the officers and the officers told him that if he "fucking came down," they would arrest him.

Unidentified witness § 87(2)(b)

§ 87(2)(b) claimed that a neighbor named § 87(2)(b) also witnessed the incident and specifically witnessed § 87(2)(b) being struck on the head with a radio. The phone number she provided for § 87(2)(b) was disconnected. She provided no other contact information for § 87(2)(b) and no other complaint was made regarding this incident (enclosure 30h) that could identify additional witnesses or "§ 87(2)(b)".

Det. Craig Crisfield

Det. Crisfield, a § 87(2)(b)-old white male with brown hair, made the following statements on his DD-5 investigative reports (enclosure 19a-19c). On November 19, 2005, Det. Crisfield went to the home of § 87(2)(b) regarding an incident on November 18, 2005. § 87(2)(b) alleged that her father – § 87(2)(b) – entered her home without permission, punched her on the head, removed items from her purse, and then fled the scene. On November 20, 2005, Det. Crisfield submitted an investigative card for § 87(2)(b). On December 5, 2005, Det. Crisfield and Det. Dohan went to § 87(2)(b) in an attempt to arrest § 87(2)(b). Det. Crisfield spoke with § 87(2)(b) who confirmed that § 87(2)(b) resided at the location but was not home. On January 6, 2006, Det. Crisfield, Sgt. Neessen, Det. Dohan,

Det. Eppolito, and Det. Cregin went to § 87(2)(b) At 11:45 AM, § 87(2)(b) was taken into custody and arrested. Det. Crisfield also arrested § 87(2)(b) and § 87(2)(b) for § 87(2)(a) 160.50 § 87(2)(a) FCT § 380.1 § 784

Det. Crisfield's memo book (enclosure 19d-19f) indicated that at 12:30 PM, he had three individuals under arrest at § 87(2)(b)

Det. Crisfield prepared the arrest reports for § 87(2) and § 87(2) (enclosures 19o-19p and 19q-19r, respectively). He charged § 87(2) with § 87(2)(a) 160.50 one count of criminal contempt, and one count of resisting arrest. Physical force was noted as being used in order to prevent escape. In the details section, Det. Crisfield stated: "at time and place of occurrence, the defendant was apprehended for a robbery/burglary occurring on November 18, 2005. While attempting to effect the arrest, the perpetrator refused to be handcuffed, punching and kicking police officers several times causing injuries (officers removed to hospital). Complainant victim had a valid order of protection against the perpetrator."

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Det. Crisfield prepared an unusual occurrence report regarding the incident (enclosure 19ac). For the condition, Det. Crisfield noted "apprehension of I-card suspect § 87(2)(a) 160.50" In the details section, he stated: "at time and place of occurrence, Sgt. Neessen and four detectives from the 47th Precinct Detective Squad were attempting to effect the arrest of § 87(2)(b) on an active I-card for the crime of § 87(2)(a) in the confines of the 42nd Precinct. Subsequently, four members of the service were assaulted by § 87(2)(b) and two additional perpetrators. The aforementioned members of the service were treated for minor injuries. Three arrestees were removed to the 47th Precinct for arrest processing."

Det. Crisfield was interviewed at the CCRB on May 18, 2006 (enclosure 19aj-19al). Det. Crisfield confirmed that he went to § 87(2)(b) on December 5, 2005 with Det. Dohan and PO Widsom. After being informed that § 87(2) was not home, the officers waited outside for approximately 30-45 minutes. § 87(2) never came home and Det. Crisfield left his business card with § 87(2)(b) Det. Crisfield denied that he or any officer threatened to break down the door.

On January 6, 2006, Det. Crisfield returned to the location. Det. Crisfield, Det. Dohan, and Sgt. Neesen went to the front door while Det. Eppolito and Det. Cregin went to the back of the house to make sure nobody came out in the back. § 87(2) s mother, § 87(2)(b) answered the door and Det. Crisfield explained why the officers were there. § 87(2) s mother told the officers they could not enter her home unless they had a warrant. Det. Crisfield observed § 87(2) looking up from the bottom of a staircase just inside the front door. § 87(2) ran into the basement and the officers followed him. Det. Crisfield explained that he knew § 87(2) had a violent history and was known to carry a firearm. He explained that he entered the location to prevent his escape and to ensure that § 87(2) did not get a weapon. Det. Crisfield did not hear any officer say to the mother, "I'm not going to show you shit."

The officers did a systematic search of the basement, going from room to room. Det. Crisfield recalled § 87(2) exiting the first bedroom and Det. Crisfield shown his flashlight on her. He could not recall if his firearm was pointed at that time, though he stated that he probably was pointing his firearm as a safety precaution. § 87(2) appeared to have just woken up and did not have any weapons that he could see. Det. Crisfield then entered the room she came out of but saw no one in there. Det. Crisfield next went to the living room area, where he observed someone lying under a blanket on the couch. Det. Crisfield removed the blanket and told the individual § 87(2)(b) to show her/his hands. Det. Crisfield could not recall if he had his gun pointed, but stated that he probably did given the circumstances. Det. Crisfield saw that the individual was a woman, not § 87(2)(b)

The officers then entered another bedroom, which was empty, and finally entered the bathroom. With his flashlight in one hand, Det. Crisfield pulled back the shower curtain and found § 87(2) Det. Crisfield had his gun out and pointed at § 87(2) while repeatedly demanding to see § 87(2) s hands. § 87(2) refused to show his hands, though Det. Crisfield was able to see that he had no weapons so he reholstered his firearm. § 87(2) then propped himself up on top of the sink and kicked Det. Crisfield away from him. A struggle ensued and Det. Crisfield and Sgt. Neesen handcuffed one of § 87(2) s hands. § 87(2) was punching

and kicking at the detectives while the officers tried to grab onto his shirt and pants. The detectives never punched § 87(2)(b). Det. Dohan remained in the hallway and was not involved in the first part of the struggle.

The struggle spilled out into the hallway and eventually into a bedroom across the hall. The three officers entered the bedroom with § 87(2)(b)'s mother, and § 87(2)(b)'s daughter § 87(2)(b) entered the bedroom as well and tried to pull and push the detectives off of § 87(2)(b). The family members threw punches and interfered with the arrest. § 87(2)(b) continued resisting. Det. Dohan attempted to request assistance over the radio but was tuned to the 47th Precinct. Det. Dohan then called Det. Eppolito on his Nextel but Det. Eppolito told Det. Dohan the door was locked. Det. Crisfield ran upstairs to open the door but Det. Eppolito smashed the window with his gun and gained access. The three officers then went back into the basement. Det. Eppolito, who is a large male, got on top of § 87(2)(b) to prevent him from resisting and the officers finally handcuffed him. Even with Det. Eppolito's assistance, it took the officers approximately 5-6 minutes to handcuff § 87(2)(b).

Det. Crisfield then went outside to wave down the responding 42nd Precinct officers and the evidence team, who were having difficulty finding the location. After waving them down, he returned to the house and observed Sgt. Neesen escorting § 87(2)(b) out of the house. The other family members continued to interfere by striking at the officers. Det. Crisfield escorted § 87(2)(b) to one of the squad cars while the other officers tried to keep the family back. Det. Crisfield denied ever being asked for his name while on the scene.

Det. Crisfield remained in the vehicle with § 87(2)(b) and did not see what happened, though he could see that a struggle of some type was occurring in the yard. § 87(2)(b) and § 87(2)(b) were also arrested, though he did not observe the arrests. At the station house, § 87(2)(b) indicated that she was pregnant; she was transported to the hospital as a precautionary measure. Det. Crisfield did not see any injuries to her. § 87(2)(b) and § 87(2)(b) were also transported to the hospital. § 87(2)(b)

Det. Kenneth Dohan

Det. Dohan, a § 87(2)(b) year-old white male with brown hair, did not have memo book entries for this incident (enclosure 20a-20c).

Det. Dohan was interviewed at the CCRB on June 28, 2006 (enclosure 2d-20f). § 87(2)(g) He added that he tried to keep the female family members from interfering with the arrest in the basement. Det. Dohan held out his hands to keep the family members from passing him. Det. Dohan did not see the struggle inside the bathroom but could hear bumping. After the struggle moved into the bedroom, Det. Dohan tried to call for assistance over the radio but his radio was set on the wrong frequency. He contacted Det. Eppolito to enter the house to assist. Det. Dohan then put his radio and phone into his jacket pockets and entered the bedroom to assist. While doing so, he was hit on the back of the head by the family members, though he did not know who hit him. One of § 87(2)(b)'s hands was cuffed but he was swinging his arms and kicking at the officers to prevent the officers from completing the handcuffing. Det. Dohan denied that any officer placed § 87(2)(b) in a headlock or chokehold. Det. Crisfield left the room. Det. Dohan and Sgt. Neesen continued struggling with § 87(2)(b) while standing on a mattress. During the struggle, the family members continued to hit Det. Dohan and Sgt. Neesen.

Det. Eppolito and Det. Cregin then entered the room. Det. Eppolito pushed § 87(2)(b) to the ground and the officers handcuffed him. Det. Eppolito did not place § 87(2)(b) in a headlock. Sgt. Neesen escorted § 87(2)(b) out of the basement and out of the house. No officers punched § 87(2)(b) or told him to "shut the fuck up." At the front door, Det. Dohan observed Sgt. Neesen being hit on his head by the § 87(2)(b) family. Once everyone was out of the house, two females § 87(2)(b) and § 87(2)(b) were involved in "scuffles" with multiple uniformed officers. Det. Dohan denied that any officer carried § 87(2)(b) out of the house. Det. Dohan was not involved in the skirmishes, though he recalled hearing an officer say, "she bit me." He turned and saw a sergeant (Sgt. Neusch) holding the young girl on the ground and handcuffing her. He denied that any officers called the young girl an "animal." Det. Dohan denied that an officer hit the young girl on the head with a radio. Det. Dohan did not observe any injuries to the arrested individuals. A small crowd gathered on the street. Det. Dohan denied that any officers threatened to arrest anyone in the crowd. Det. Dohan could not recall if he was ever asked for his name, though he denied ever telling anyone that his name was "Joe Black."

Sgt. Jon Neessen

Sgt. Neessen, a § 87(2)(b)-year-old white male with blonde hair, was interviewed at the CCRB on July 12, 2006 (enclosure 23a-23c). According to Sgt. Neessen, the officers had probable cause to enter the location and arrest § 87(2) once he was positively identified. Sgt. Neessen claimed that he and Det. Crisfield were the officers who saw § 87(2) inside the location, asked him to come over to them, and then fled into the basement. Sgt. Neessen did not hear anyone ask to see a warrant. Sgt. Neessen confirmed that the officers went downstairs with their guns drawn. Sgt. Neessen claimed that during the struggle in the bathroom with § 87(2) all three of them repeatedly banged against the wall and bathroom vanity. § 87(2) repeatedly pushed the officers away. The struggle spilled out into the hallway and then into a bedroom. § 87(2) pushed Sgt. Neessen against a window and then the group fell onto the bed. § 87(2) and § 87(2)(b) started pushing Sgt. Neessen and Det. Dohan away from § 87(2). Det. Eppolito entered the room and helped the officers handcuff § 87(2) by forcefully grabbing one of his hands. None of the officers punched § 87(2) or placed § 87(2) in a chokehold.

Once § 87(2) was handcuffed, Sgt. Neessen instructed the officers to leave and he escorted § 87(2) out of the house. While walking up the basement stairs, § 87(2)(b) repeatedly threw her body onto Sgt. Neessen's hands to separate the sergeant and § 87(2). Sgt. Neessen raised § 87(2)'s handcuffs in an effort to force § 87(2)(b) off the handcuffs. § 87(2)(b) pushed her back against Sgt. Neessen and then tried to push § 87(2) forward. § 87(2)(b) who was watching the incident, yelled that § 87(2)(b) was pregnant. § 87(2) then started punching Sgt. Neessen on the left side of his head several times. § 87(2)(b) also started hitting Sgt. Neessen on the head. Sgt. Neessen yelled for the other detectives to get out of there quickly and that he was being hit.

Sgt. Neessen exited the home and as soon as he did so, backup officers took § 87(2) and removed him from the location. § 87(2) stood on the grass and was screaming and cursing. Sgt. Neessen approached § 87(2) with an unidentified officer and handcuffed her without incident. Sgt. Neessen denied that any officer said, "lock her ass up too." Sgt. Neessen looked around for § 87(2)(b) and observed her handcuffed and lying on her stomach in the grass. Sgt. Neusch was next to her and § 87(2)(b) was screaming and cursing. Sgt. Neessen denied that any officer called her a "dirty little animal" or hit her with a radio. He also denied ever being asked for his name. Sgt. Neessen did not observe any injuries to the arrested civilians. § 87(2)(b)

Det. Joseph Eppolito

Det. Eppolito, a § 87(2)(b)-year-old white male with brown hair, was interviewed at the CCRB on July 25, 2006 (enclosure 22a-22c). Det. Eppolito confirmed that Det. Dohan called him via Nextel and requested that he and Det. Cregin enter to assist the officers. Det. Eppolito also confirmed that he attempted to break the window of the front door, as it was locked and nobody was answering his ringing of the doorbell. However, he claimed that he was only able to crack the window after a few blows. Det. Crisfield opened the door from the inside and led Det. Eppolito and Det. Cregin to the basement.

Once inside the bedroom, Det. Eppolito observed Det. Dohan attempting to keep § 87(2)(b) and § 87(2) from interfering with the arrest. Sgt. Neessen was standing on a mattress with § 87(2) trying to handcuff him. § 87(2) resisted by pulling his hands back and punching Sgt. Neessen on the neck or shoulder. Det. Eppolito ran over, grabbed § 87(2)'s legs, and pulled him to the floor. While doing so, § 87(2) punched Det. Eppolito on the head. Det. Eppolito tried to hold § 87(2) on the ground by laying on top of him and grabbing his hands, but § 87(2) tried to scoot away and swing at Det. Eppolito. § 87(2) also continued hitting Det. Eppolito. Det. Cregin and Det. Crisfield stood in the doorway holding back the other family members. Det. Eppolito told the other officers to call for more back-up, as he was unable to get § 87(2) handcuffed. After two more minutes, Det. Eppolito finally handcuffed § 87(2). Det. Eppolito denied that any officers placed § 87(2) in a headlock or used a chokehold against him.

Det. Eppolito was the second to last officer to leave the basement; Sgt. Neessen followed him and escorted § 87(2). While walking up the stairs, § 87(2) tried to push § 87(2) and Sgt. Neessen back down the stairs. Det. Eppolito tried to grab § 87(2) to pull her out of the way. § 87(2)(b) was also trying to break Sgt. Neessen's hold of § 87(2) by hitting his hands. Det. Eppolito grabbed § 87(2)(b)'s left wrist and she punched him on the right eye. Det. Eppolito then pulled § 87(2)(b) out of the house by her left hand. He denied lifting her off the ground. Det. Eppolito remained at the doorway and pulled § 87(2)(b) past him so that she was out of the way. Sgt. Neessen then exited with § 87(2). Det. Eppolito pointed out § 87(2)(b) to one of the responding officers, Sgt. Neusch, and told him to arrest her. Sgt. Neusch proceeded to arrest

§ 87(2)(b) though not without a struggle. § 87(2)(b) bit Sgt. Neusch on the inside of his left leg. Det. Eppolito did not assist in the arrest. He did not hear Sgt. Neusch say, “this little animal bit me.” § 87(2)(b) was also arrested, though Det. Eppolito did not assist in that arrest or observe what occurred. Nobody requested Det. Eppolito’s name and he denied that any officer responded to such a question with the answer, “Joe Black.” Det. Eppolito did not recall seeing § 87(2)(b) escorted to a vehicle, but he denied that any officer struck her in the head with a radio or other object. Det. Eppolito did not observe any injuries to the civilians, though he confirmed that they were transported to the hospital. § 87(2)(b) EMS treated him at the station house, but he did not go to the hospital.

Det. Patrick Cregin

Det. Cregin, a § 87(2)(b)-year-old white male with brown hair, was interviewed at the CCRB on June 28, 2006 (enclosure 21a-21c). Det. Cregin’s statement regarding the broken window to the front door was consistent with Det. Eppolito’s statement. Regarding the actions inside the apartment, Det. Cregin indicated that he remained in the basement hallway to prevent the family members from entering the bedroom. He did not observe much of the arrest. At one point, § 87(2)(b) approached him and attempted to hit him with a phone. She pushed Det. Cregin and hit him with her hands. Det. Cregin tried to push her back and told her to stay back. At one point, § 87(2)(b) got past Det. Cregin. After § 87(2)(b) was arrested, the officers started to leave with Det. Cregin possibly the first one out. Det. Cregin turned around and saw that some of the family members, who were walking behind the sergeant, were hitting Sgt. Neessen. Sgt. Neessen continued walking and escorted § 87(2)(b) outside. Det. Cregin stood on the stoop in an effort to prevent the family members from walking after Sgt. Neessen. § 87(2)(b) and § 87(2)(b) jumped over the stoop railing to get around Det. Cregin. Sgt. Neusch, one of the responding officers, grabbed § 87(2)(b) and wrestled her to the ground. Det. Cregin heard Sgt. Neusch yell that § 87(2)(b) bit him; he could not recall if Sgt. Neusch called her a “little animal.” Other uniformed officers assisted in handcuffing § 87(2)(b). Det. Cregin did not observe § 87(2)(b)’s arrest; he denied that any officer said, “take her ass too.” Det. Cregin recalled an unidentified elderly couple asking the officers for their names. Det. Cregin provided his name; Det. Cregin did not identify himself as “Joe Black.” Det. Cregin did not see any officers hit § 87(2)(b) on the head with a radio or object.

Sgt. Charles Neusch

Sgt. Neusch, a § 87(2)(b)-year-old white male with brown hair, was interviewed at the CCRB on August 31, 2006 (enclosure 24a-24d). According to Sgt. Neusch, he responded to the location with PO Daniel Rich in a marked RMP after receiving a request for back-up. Upon arrival, he observed numerous people exiting the house and fighting. As he walked through the gate, Sgt. Neusch observed a young teenage girl § 87(2)(b) strike a heavyside detective from the 47th Precinct in the face. § 87(2)(b) tried to strike the detective again but Sgt. Neusch grabbed her and tried to restrain her. She kicked, scratched, flailed her arms, and fought to Sgt. Neusch and the 47th Precinct detective pushed her to the ground to restrain her. She was facedown on the ground and each officer was holding one of her arms. Sgt. Neusch removed his handcuffs and when he reached over to handcuff her left arm, § 87(2)(b) turned her head and bit his right thigh. Sgt. Neusch pushed her head away and handcuffed her. He then held her on the ground for a couple of minutes by holding her handcuffed arms up in the air. One of the detectives might have placed his knee on her back to keep her down as well. After two minutes, Sgt. Neusch and the detective lifted § 87(2)(b) off the ground and escorted her to a patrol car. On the way to the car, § 87(2)(b) kicked and attempted to bite Sgt. Neusch and the detective. The two officers kept her at an arm’s length and lifted her handcuffs to prevent her from biting. The officers did not use any additional force. Sgt. Neusch never removed his radio, denied hitting § 87(2)(b) with a radio or other object, and denied that any other officers did so. After she was placed in the patrol car, § 87(2)(b) screamed and kicked at the window and door. Sgt. Neusch was not aware of § 87(2)(b) sustaining any injuries and he did not see her after leaving the scene. Sgt. Neusch denied ever calling her an “animal.” He did not observe any other arrests and denied threatening to arrest any other parties at the scene. EMS treated Sgt. Neusch at the Patrol Borough Bronx command, but he did not seek further medical treatment.

Medical Records

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

NYPD Records

SPRINT § 87(2)(b) (enclosure 28e-28j) indicated that at 11:22 AM, § 87(2)(b) stated that officers broke down her door and were trying to arrest her daughter and granddaughter. At 11:23 AM, the line was still open and a female was heard stating, “let go (of) her neck, I got nothing to do with it.” A female asked to see a warrant. A male could be heard stating the officers were detectives from the 42nd Precinct and would give her the information.

SPRINT F04592 (enclosure 28e-28j) indicated that at 11:28 AM, there was violent commotion in regards to two plainclothes officers on the scene with arrest warrants.

SPRINT F04492 (enclosure 28e-28j) indicated that the 47th Detective Squad requested an ambulance to the location at 11:19 AM, as the perpetrator was having difficulty breathing. At 11:22 AM, it was reported that there were no injuries to officers and no further units were needed. At 11:35 AM, the patrol sergeant indicated that two females were to be transported to the 47th Precinct station house. At that same time, IAB requested that the patrol sergeant call IAB to notify with the information. At 11:40 AM, it was reported that the 47th Precinct Detective Squad made three arrests.

A city involved accident report was prepared by an unidentified officer (enclosure 28l). It indicated that a glass panel on the front door of § 87(2)(b) in the Bronx was damaged. The comments section stated: “While responding to a signal 10-13 by 47 BRAM, Det. Eppolito did attempt to gain access to § 87(2)(b). After ringing doorbell, occupants came to door and refused to let responding MOS into house or unlock door preventing the undersigned from assisting the 47 BRAM who were inside of premises. Det. Eppolito did break glass panel on front door to gain access and assist MOS who were locked inside of residence.”

Dispositions of arrests

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Criminal conviction histories (enclosure 29a-ao)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB Histories

§ 87(2)(b) filed a duplicate complaint of this incident (enclosure 5); she has not filed any other CCRB complaints. § 87(2)(b) filed another CCRB complaint in addition to this one § 87(2)(b). This is the first and only complaint for the other civilians involved (enclosure 6, 8-10).

Officer CCRB Histories

Det. Crisfield, Sgt. Neessen, and Sgt. Neusch do not have any substantiated CCRB allegations (enclosures 1, 2, and 4). In CCRB 9200734, an abuse of authority (premises searched) allegation was substantiated against Det. Eppolito, though no disposition is available (enclosure 3).

Conclusions and Recommendations

Officer Identification

Based on the statements and descriptions of subject officers provided by § 87(2)(b) and § 87(2)(b) as well as the officer statements, Det. Crisfield was identified as the officer who allegedly threatened to damage § 87(2)(b)'s property, who allegedly spoke obscenely to § 87(2)(b) pointed his firearm at § 87(2)(b) and § 87(2)(b) and finally, who used physical force to arrest § 87(2)(b). Because it was Det. Crisfield's case and he confirmed that he was the first officer to see § 87(2)(b) and decided to enter the location, the entry allegation is solely being pleaded against him. Allegations A-E are pleaded against him.

Based on the officer statements, Sgt. Neessen was identified as the officer who first assisted Det. Crisfield in using force against § 87(2)(b). Allegation F is pleaded against him.

§ 87(2)(b)'s claim that the struggle in the bathroom damaged the bathroom wall (allegation G) is being pleaded against "officers."

Although § 87(2)(b)'s statement indicated that Sgt. Neessen used a chokehold against § 87(2)(b), no other civilian or officer statement supported the claim that a chokehold was used. Allegation H is being pleaded against "an officer."

§ 87(2)(b)'s claim that an unidentified officer identified himself as "Joe Black" (allegation I) is being pleaded against "an officer."

Based on § 87(2)(b)'s statement that Sgt. Neessen spoke discourteously to him during the arrest, allegation J is pleaded against him.

Based on the officer statements, allegations K and L are pleaded against Det. Eppolito.

Based on the officer statements, allegation M is pleaded against Sgt. Neusch. Although § 87(2)(b) and § 87(2)(b)'s statements indicated that Sgt. Neessen assisted in using physical force against § 87(2)(b) to effect her arrest, Sgt. Neessen denied that he was the officer in question. Allegation N is pleaded against "an officer."

Based on the statements of § 87(2)(b) and the officers, allegation O is pleaded against Sgt. Neusch.

§ 87(2)(b)'s statement indicated that Sgt. Neessen was the officer who allegedly threatened to arrest him. Allegation P is pleaded against Sgt. Neessen.

§ 87(2)(b)'s statement identified Sgt. Neessen as the officer who allegedly struck her on the head with a radio or object. Allegation Q is pleaded against Sgt. Neessen.

Undisputed Facts

On December 5, 2005, Det. Crisfield, Sgt. Neessen, and Det. Dohan went to § 87(2)(b) in the Bronx regarding an investigation pertaining to § 87(2)(b).

On January 6, 2006, Det. Crisfield, Sgt. Neessen, and Det. Dohan returned to § 87(2)(b) with an Investigation-card prepared for § 87(2)(b). Det. Eppolito and Det. Cregin were also present. Det. Crisfield, Sgt. Neessen, and Det. Dohan entered the location despite § 87(2)(b)'s requests to see a warrant. They went into the basement with guns drawn. Det. Crisfield pointed his gun at § 87(2)(b) and § 87(2)(b) in the process of searching the basement until he finally found § 87(2)(b) in the bathroom. Det.

Crisfield pointed his gun at § 87(2) as well. A struggle between § 87(2) and Det. Crisfield and Sgt. Neessen began in the bathroom and caused damage to a wall of the bathroom. The struggle eventually spilled into a bedroom across from the bathroom. § 87(2)(b) and § 87(2)(b) were present during the struggle in the bedroom. Det. Eppolito attempted to enter the front door, but the door was locked. Det. Eppolito broke the glass window of the door and gained entry to assist in the arrest of § 87(2)(b). § 87(2) was removed from the location. § 87(2) and § 87(2)(b) were arrested outside the house. § 87(2)(b) bit Sgt. Neusch during her arrest. § 87(2)(b) and § 87(2)(b) received medical treatment at § 87(2)(b).

§ 87(2)(a) PHL § 18(6)

Disputed Issues

§ 87(2)(b) claimed that on December 5, 2005, Det. Crisfield threatened to break down her door when the officers returned at a later date. The officers denied any such claim was made.

§ 87(2)(b) claimed that on January 6, 2006, Det. Crisfield spoke to her discourteously when he said, "I don't have to show you shit" when asked to show the search warrant. The officers denied any such statement was made. § 87(2)(g)

§ 87(2) claimed that an officer (Sgt. Neessen) used a chokehold against him prior to pulling him into the bedroom. None of the other statements corroborated this claim.

§ 87(2)(b) claimed that Sgt. Neessen told him to "shut the fuck up." Sgt. Neessen denied he made any such comment.

§ 87(2)(b) claimed that the officer she bit (Sgt. Neusch) referred to her as an "animal." Sgt. Neusch denied making any such statement.

§ 87(2)(b) also claimed that Sgt. Neessen was the officer who struck her on the head with a radio or other object, causing the laceration to her head. Sgt. Neessen denied the allegation, as did the other officer statements. No other civilian statement corroborated this allegation.

Credibility

§ 87(2)(g)

§ 87(2)(g)

Allegation not pleaded

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Although Det. Cox indicated that § 87(2)(b) was a suspect in an active § 87(2)(a) 160.50 violation, there was no active arrest warrant for § 87(2)(b) at the time of the incident. Instead, Det. [redacted] only possessed an "I-card." Such a document does not establish probable cause to arrest § 87(2)(b). An I-card only serves as an investigative tool to notify the filing officer that the individual in § 87(2)(b) is in the custody of the NYPD and/or other law enforcement agencies. § 87(2)(g)

[REDACTED]

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is recommended that allegation D be closed, **exonerated**.

Allegation E. Force – On January 6, 2006, Det. Craig Crisfield used physical force against § 87(2)(b)

Allegation F. Force – On January 6, 2006, Sgt. Jon Neessen used physical force against § 87(2)(b)

Allegation G. Abuse of Authority – On January 6, 2006, officers damaged § 87(2)(b) **s property.**

§ 87(2)(g)

§ 87(2)(g)

It is recommended that allegation E-G be closed, **exonerated**.

Allegation H. Force – On January 6, 2006, an officer used a chokehold against § 87(2)(b)

§ 87(2)(g)

It is recommended that allegation H be closed, **unfounded**.

Allegation I. Abuse of Authority – On January 6, 2006, an officer refused to provide his name to Phillip § 87(2)(b)

§ 87(2)(g)

It is recommended that allegation I be closed, **unfounded**.

Allegation J. Discourtesy – On January 6, 2006, Sgt. Jon Neessen spoke rudely to § 87(2)(b)

§ 87(2)(g)

It is recommended that allegation J be closed, **unsubstantiated**.

Allegation K. Abuse of Authority – On January 6, 2006, Det. Joseph Eppolito damaged § 87(2)(b) **s property.**

§ 87(2)(b)

and § 87(2)(b) all confirmed that the front door was locked while Det. Crisfield and Sgt. Neessen attempted to arrest § 87(2)(b) § 87(2)(g)

It is recommended that allegation K be closed, **exonerated**.

Allegation L. Force – On January 6, 2006, Det. Joseph Eppolito used physical force against § 87(2)(b)

§ 87(2)(g)

It is recommended that allegation L be closed, **exonerated**.

Allegation M. Force – On January 6, 2006, Sgt. Charles Neusch used physical force against

§ 87(2)(b)

Allegation N. Force – On January 6, 2006, an officer used physical force against

§ 87(2)(b)

§ 87(2)(g)

It is recommended that allegations M and N be closed, **exonerated**.

Allegation O. Discourtesy – On January 6, 2006, Sgt. Charles Neusch spoke rudely to

§ 87(2)(b)

§ 87(2)(g)

It is recommended that allegation O be closed, **unsubstantiated**.

Allegation P. Abuse of Authority – On January 6, 2006, Sgt. Jon Neessen threatened to arrest

§ 87(2)(b)

§ 87(2)(g)

It is recommended that allegation P be closed, **exonerated**.

Allegation Q. Force – On January 6, 2006, Sgt. Jon Neessen struck

§ 87(2)(b)

with a radio.

§ 87(2)(g)

Sgt. Neessen denied hitting § 87(2)(b) with a radio or any object. § 87(2)(g) It is recommended that allegation Q be closed, **unsubstantiated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: